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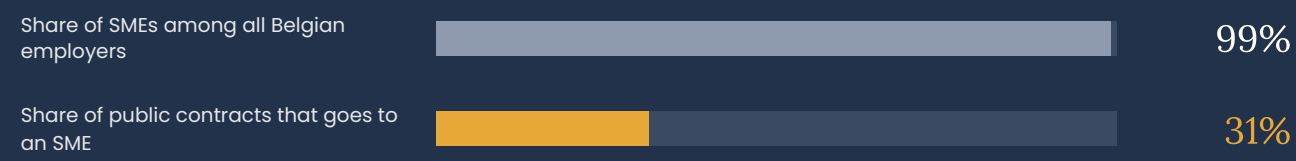
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PUBLIC TENDERS FOR SMES

EUR 85 billion,

and you get less *than a third of it*

Cleaning, construction and renovation, grounds maintenance and technical maintenance. What there is to win, where to find it, and why good companies still lose.



Sources: FPS Economy, 2024 figures (99%) and UNIZO, 2026 (31%). See the list of sources at the back.

Steven Mechele

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ABOUT THIS BOOK

This book is written for owners of Belgian SMEs with five to fifty employees. It explains how public contracts work, what they bring in and where things go wrong. It is not a legal reference work and not a manual for filling in a bid. It is a first, sober introduction.

All amounts exclude VAT. The examples in chapter 2 come from contracts that were actually awarded and published in the Belgian Procurement Bulletin (Bulletin der Aanbestedingen). The sources are listed at the back. Legislation and threshold amounts were checked on the date of publication and may change afterwards. Always check the tender specifications (bestek / cahier des charges) of the contract you have in mind.

Mechele Consultancy supports Belgian SMEs with public contracts, from reading the specifications to submitting the bid. Questions about this book: steven@mecheleconsultancy.be.

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PART 1

The market

CHAPTER 1

EUR 85 billion, and you get less than a third of it

Every working day, the Belgian public sector buys. Cleaning for schools and town halls. A new roof on a sports hall. Mowing the verges along municipal roads. Servicing the boilers in a care home. Together this comes to about EUR 85 billion a year in works, supplies and services. That makes it the biggest customer in the country. And there is a good chance you have never sent it a single invoice.

That is not because you are not good enough. It is because the system works differently from the market you know. A municipality does not ring three contractors for a price. It writes tender specifications, publishes them on a platform you probably never visit, waits a few weeks for bids, and chooses according to rules that are fixed in advance. If you do not look at that platform, you do not exist for that customer.

The figures

SMEs make up 99 percent of all Belgian employers. Yet in Belgium only about 31 percent of public contracts go to an SME. In Flanders that share is around 54 percent, which is considerably better, but still far below the weight of SMEs in the economy. Neighbouring countries do better. According to UNIZO, the Flemish organisation for the self-employed and SMEs, SMEs submit 60 percent of the bids but win far fewer of them. Those figures come from the dossier on SME-friendly public procurement that UNIZO published in November 2025 and brought back to public attention in June 2026 together with Flemish minister Crevits.

Read that figure again. SMEs submit more than half of the bids and win less than a third of the contracts. That means two things at once. First: there is a real barrier. Second: anyone who understands that barrier has a head start on the majority who do not.

One more figure from the same survey: fewer than one in three Belgian SMEs has taken part in a public contract at any time in the past ten years. So more than two out of three companies like yours have never submitted a bid. Not lost, never tried.

Why this is money for you

A public contract differs from an ordinary customer on three points, and each of those points works in your favour once you know them.

The public sector pays. Not always quickly, but certainly. A municipality does not go bankrupt and does not vanish overnight. The statutory payment term is fixed, and so is the late-payment interest. For a company that regularly has to chase invoices, that is a different world.

The public sector buys in blocks. A cleaning contract usually runs for one or more years, often with extensions. A framework agreement for grounds maintenance runs for four years. That is turnover you can plan for, staff you can recruit for, and equipment you can depreciate.

The public sector has to be fair. It may not choose the alderman's nephew. It has to say in advance what it will assess you on, and afterwards explain why you won or lost. You get that explanation in writing. A private customer rarely gives you one.

What this book does

This book will not make you a tender specialist. It will show you what is awarded in your sector, to whom, for how much and under what conditions. It teaches you how to decide in a quarter of an hour whether a set of specifications is worth the effort. And it shows where good companies go wrong, so that you do not have to repeat their mistakes.

In part 1 we look at the market: what there is to win, why SMEs stay away and where the contracts are. In part 2 we turn to practice: the specifications, the selection, the assessment and the mistakes.

One agreement up front. Nowhere do I write that you are going to win. Nobody can promise that. What I can say is this: those who know the rules of the game get to play. Those who do not, watch from the side.

> **In short**
>
> The Belgian public sector buys about EUR 85 billion a year, and SMEs in Belgium win only around 31 percent of that, in Flanders around 54 percent.
>
> More than two out of three SMEs have never submitted a bid, so the problem is more often not taking part than losing.
>
> A public customer pays reliably, buys in multi-year blocks and has to justify its choice. Those are three advantages you rarely get with private customers.

CHAPTER 2

Four companies like yours

Figures in the billions say little about your company. So we start with four real contracts, each from one of the sectors this book was written for. They were all awarded in 2024 or 2025 and published in the Belgian Procurement Bulletin, Belgium's official publication for public contracts. The sources are listed at the back of this book, so you can check them yourself.

For each example we look at the same things: what was asked, what it was worth, how long it ran, how many companies took part and who won. And each time the question that interests you: can a company of my size handle this?

Cleaning: common areas of social housing in Verviers

Contracting authority	Logivesdre, social housing company, Verviers
What was asked	Cleaning of the common areas of the housing stock: entrance halls, corridors, stairwells and lifts
Procedure	Open procedure
Awarded value	EUR 435,127 excl. VAT
Bids received	8, from EUR 430,950 to EUR 521,126
Award criteria	Price 80 points, quality of the reporting system 10, working method 10
Winner	Belgo Facility Services, Neder-Over-Heembeek, described in the notice as a medium-sized enterprise
Contract concluded	27 August 2025

What stands out: eight bids, and the difference between the lowest and the highest is about 20 percent. The winner was not the cheapest. The lowest price was more than EUR 4,000 lower, but 20 of the 100 points went to reporting and working method. That is where the difference was made.

Who can handle this? Cleaning common areas is work with fixed rounds on fixed days, spread over many addresses. It calls for good planning and reliable teams, not heavy investment. A cleaning company with ten to twenty employees that already works for property managers or businesses has the profile. The contract term was not in the notice, so you would have to get it from the specifications.

Construction and renovation: conversion of a sports hall in Bilzen

Contracting authority	City of Bilzen
What was asked	Conversion of the De Zonhoeve sports hall
Procedure	Open procedure
Required recognition	Category D (building works), class 4
Awarded value	EUR 739,030 excl. VAT
Bids received	4, from EUR 739,030 to EUR 1,188,805
Execution period	80 working days, starting 1 July 2024
Award criteria	Price 100 percent
Winner	Schoofs nv, construction company from Borgloon, about 45 employees
Contract concluded	17 June 2024

What stands out: four bids, and the highest was 60 percent above the lowest. That is not unusual for renovation works. A contractor who prices the bill of quantities (meetstaat) sharply and chooses subcontractors well often comes in far below competitors who build in a generous margin to be safe. Here only price counted, so the calculation decided.

Who can handle this? The key is in the table: recognition class 4. Contractor recognition (erkenning / agréation) is the Belgian system that classifies contractors into categories (type of work) and classes (maximum amount per contract). Without the right class you may not even bid. A construction company with 20 to 50 employees and class 4 or higher is the natural profile. A smaller company with class 2 or 3 is better off looking at roofing, joinery or smaller renovations of a school or municipal building, which are often tendered as separate lots.

Grounds maintenance: framework agreement for social housing in Lokeren

Contracting authority	Tuinwijk bv, social housing company, Lokeren
What was asked	Grounds maintenance of the housing stock in Lokeren, Waasmunster and Moerbeke: mowing grass, mechanical weed control, pruning planting, trimming hedges, removing green waste and litter
Procedure	Open procedure, framework agreement with a single contractor
Term	1 April 2025 to 31 March 2029, four years
Maximum value	EUR 750,000 over the term
Awarded value	EUR 244,966 excl. VAT
Bids received	3, from EUR 244,966 to EUR 421,920
Award criteria	Price 65 points, plan of approach 35
Winner	Meysmans Contractors, Bornem
Contract concluded	11 December 2024

What stands out: only three bids for a four-year contract. And the plan of approach (plan van aanpak) counted for 35 percent. In grounds maintenance the contracting authority wants to know how you plan the season, how you respond when the grass is too long everywhere at once after a wet week, and what you do with the green waste. Whoever puts that down well on paper picks up points the competition leaves on the table.

A framework agreement is a contract in which prices and conditions are fixed, but quantities are not. The contracting authority orders as the need arises. The maximum of EUR 750,000 is therefore a ceiling, not a promise.

Who can handle this? A grounds maintenance company with five to fifteen employees, its own mowing equipment and experience with recurring maintenance for businesses or property managers. For comparison: in 2024 the local authority of De Pinte awarded the mowing of road verges for two seasons to a company from Laarne for EUR 135,308, with six bidders. Seasonal contracts like that are a good first step for a smaller company.

Technical maintenance: HVAC installations of the municipality of Diepenbeek

Contracting authority	Municipality of Diepenbeek
What was asked	Maintenance of the HVAC installations in the municipal buildings, in three lots: heating and domestic hot water, cooling, and ventilation
Procedure	Open procedure, framework agreement
Term	1 January 2025 to 31 December 2028, four years
Maximum value	EUR 490,000 over the term, split across the three lots (EUR 120,000, EUR 120,000 and EUR 250,000)
Awarded amounts	EUR 54,012 (heating), EUR 15,230 (cooling) and EUR 43,820 (ventilation); the notice does not say whether these are annual amounts or bid amounts based on a notional quantity
Bids received	2 per lot
Award criteria	Price 50 points, mark-up on manufacturer or third-party invoices 15, mark-up on spare parts 15, hourly rate for time-and-materials work (regie) 20
Winner	Huygen & Van Ende bvba, installation company from Diepenbeek, about 25 employees, all three lots
Award decision	17 December 2024

What stands out: two bids per lot. Two. For a four-year contract with a municipality. A local installation company with 25 people took all three lots. This is the kind of contract where competition is thin, because most installers never look at the platform.

Look at the criteria as well. Not only the base price counted, but also your hourly rate for call-outs and the mark-up you take on parts. If you understand your price structure, you can play on that. If you only look at the total, you miss half the points.

Who can handle this? A technical company with ten to thirty employees, an on-call service or at least a call-out arrangement, and the certifications that go with the work, such as the mandatory certification for anyone working with refrigerants. A company that only installs and is not used to maintenance contracts first has to get its planning and reporting in order.

What the four tell us together

Three things keep coming back. The number of bidders is small: between two and eight. This is not a market where you fight fifty competitors. The price differences are large, up to 60 percent. So the market is not so tight that there is nothing to earn. And the winners are companies with 25 to 45 employees, with one medium-sized enterprise among them. No multinationals.

One more thing. Two of the four contracting authorities are social housing companies, not municipalities. Public social welfare centres (OCMW/CPAS), school groups, police zones, intercommunal associations, hospitals and church councils (kerkfabrieken) also fall under the public procurement act. The market is much broader than the town hall.

> **In short**
>
> In the four examples, only two to eight companies took part each time, and the price differences went up to 60 percent.
>
> The winners were companies with 25 to 45 employees, often from the local area, not large groups.
>
> The contracting authority is far from always the municipality: housing companies, schools, public social welfare centres and care institutions put contracts out to tender just as much.

CHAPTER 3

The myths that keep SMEs away

If more than two out of three SMEs have never submitted a bid, that is not because they are lazy. It is because they believe something about public contracts that holds them back. I hear four of those beliefs again and again. Each contains a grain of truth, and each is largely wrong.

Myth 1: ‘That is too big for us’

The grain of truth: there are contracts worth tens of millions, and those are indeed not for you.

Why it is still wrong: the law requires contracting authorities to consider dividing contracts into lots, precisely to give SMEs a chance. A lot is a separate part of a contract that you can bid for on its own. The municipality of Diepenbeek from the previous chapter split its maintenance into heating, cooling and ventilation. A social housing company in Leuven split its periodic maintenance of common areas into eleven lots, which went to three different small cleaning companies.

What is more, most contracts are small. Below certain threshold amounts, a contracting authority may use a negotiated procedure without prior publication: it then chooses a number of companies itself and asks them for a bid. Today that limit is EUR 140,000. And below EUR 30,000 it may even simply accept an invoice, like any other customer. In April 2026 the federal government approved a preliminary draft bill (voorontwerp van wet) to raise that last limit to EUR 75,000, and on 9 October 2026 it introduced the bill (wetsontwerp) in the Chamber of Representatives (Kamer). At the time of writing it is not yet in force, but the direction is clear: more small contracts, with fewer formalities.

So the real problem is not that contracts are too big. It is that, for the small contracts, you are not on the list of companies the municipality writes to. We come back to that in chapter 4.

Myth 2: ‘It is all decided in advance anyway’

The grain of truth: a company that has worked for a municipality for years knows the buildings, the people and the habits. That is an advantage. And yes, it happens that a set of specifications seems to have been written to fit one particular party.

Why it is still wrong: the law requires the contracting authority to announce the award criteria in advance, to assess every bid against those criteria, and to justify its decision. After the award you receive a letter stating how many points you scored and why. If that justification does not hold up, you can go to the Council of State (Raad van State). That happens, and contracting authorities know it.

Look at the figures from chapter 2. In Verviers the winner was not the cheapest, and the reason was there in black and white in the criteria: reporting and working method. In Lokeren the plan of approach counted for 35 percent. Those are not back-room deals. Those are points you can earn if you know where they are.

What is true: an incumbent supplier rarely loses by chance. It loses when a challenger prices more sharply or explains better how it works. You can learn both.

Myth 3: ‘It is only about price’

The grain of truth: for many works contracts, price is the only criterion. The sports hall in Bilzen is an example. And even where quality counts, price usually weighs the most.

Why it is still wrong: of the four examples in chapter 2, three had quality criteria, worth 20 to 50 percent of the points. In cleaning and grounds maintenance that is the rule. Contracting authorities are tired of the cheapest-takes-all approach, because too often they ended up with a supplier who promised and did not deliver. The federal simplification on the table in 2026 even makes the best price-quality ratio the default for large contracts.

More importantly: even in a pure price contract, price is not the same as cheap. A contracting authority may, and must, investigate an abnormally low price. A bidder who goes too low has to justify it and can be excluded. The winning price is the lowest price that is still credible. That is a matter of calculation, not bargain hunting.

Myth 4: ‘Too much paperwork’

The grain of truth: a first bid takes time. You have to collect certificates, fill in a form on exclusion grounds, describe your references and build your bid the way the specifications ask, not the way you are used to.

Why it is still wrong: most of the paperwork is a one-off. Your certificate from the social security office (RSZ/ONSS), your tax certificate, your insurance certificate, your reference list and your company profile are things you prepare once and keep up to date. The European Single Procurement Document, ESPD for short (UEA), is a standard form in which you declare that no exclusion ground applies to you and that you meet the selection criteria. Once it is filled in, you adapt it for each contract. By the second bid, half the work is already done. By the fifth, it is routine.

The contracting authority also retrieves more and more itself. Through the Telemarc application it checks your social security debts, your tax debts and your bankruptcy status directly in government databases. You then no longer need to attach those certificates. The e-Procurement platform, where you submit your bid, is fully digital. No more registered post, no more stamps.

What is true: the paperwork does not forgive carelessness. A forgotten signature or a missing document can make your bid non-compliant, which means it is not even assessed. That is what chapter 8 is about.

The real reason

Behind the four myths there is usually one reality: nobody in the company has ever done it, and the owner has no time to work it out. That is an honest answer. It is also a solvable problem, as the rest of this book shows.

> **In short**
>
> Contracts are deliberately split into lots, and most purchases happen below the thresholds where the contracting authority writes to companies itself.
>
> Contracts are awarded on criteria announced in advance, with a written justification, and in most service contracts quality counts for 20 to 50 percent.
>
> The paperwork is largely a one-off; what comes back every time is care.

CHAPTER 4

Where public contracts are published and how to find the right ones

A public contract you do not see does not exist. This chapter is about where to look, how often, and how to avoid reading fifty useless notices every week.

The official platform: e-Procurement

All Belgian contracting authorities must publish their contracts above certain thresholds on e-Procurement, the federal platform you reach via publicprocurement.be. A new version has been running there since September 2023; by early 2025 more than 25,000 contracts had been published on it and some 50,000 companies were registered. The platform does three things: it publishes notices, it makes the specifications and annexes available, and it receives your bid.

Registering is free and is the first step. Without registration you cannot submit a bid. Once registered, you can create search profiles that alert you by email when a contract appears that matches your activity. That is all you need to follow the market.

The key to a good search profile is the CPV code. CPV stands for Common Procurement Vocabulary, a European list of numeric codes that names every type of work, supply or service. Every notice carries one or more of these codes. Cleaning of buildings has its own code, and so do grounds maintenance and the servicing of heating installations. If you know the codes for your activity and put them in your search profile, you only receive what is relevant. Anyone who searches by keyword instead of code misses contracts described in other words and gets heaps of notices that have nothing to do with them.

Combine the codes with a region. A cleaning company from West Flanders does not need to see contracts from Arlon. The platform lets you filter on place of performance.

The European layer: TED

Above the European thresholds, a contract must also be published in the Official Journal of the European Union, which you can consult via TED (Tenders Electronic Daily). For 2026 and 2027 those thresholds are EUR 216,000 for supplies and services from local and regional authorities, EUR 140,000 for the federal government, and EUR 5,404,000 for works. Belgian contracts above those thresholds therefore appear on both platforms. You do not need to follow TED separately; e-Procurement is enough for the Belgian market.

Paid services and the press

Besides the official platform, there are commercial services that collect the notices, enrich them and present them in a handier form, sometimes with access to the results of earlier awards. That last point is useful: if you know what a contract cost last time and who won it, you can calculate with your cards on the table. Whether a subscription is worth it depends on how many contracts you want to follow each year. For a beginner the free platform is enough. The construction press and sector federations also publish notices, but always later than the source.

What you will not find on the platform: the small contracts

This is the part of the market that most SMEs miss. Below the threshold for the negotiated procedure without prior publication, currently EUR 140,000, the contracting authority does not have to publish anything. It chooses several companies itself, in practice usually three, and asks them for a bid. Below EUR 30,000 it may work with a simple accepted invoice. And as mentioned: according to the bill introduced in the Chamber in October 2026, that last limit is going up to EUR 75,000.

This means that a municipality wanting a EUR 60,000 roof replaced, or a school wanting a maintenance contract of EUR 40,000 a year, simply writes to three companies it knows. If you are not on that list, you never see the contract. The good news: getting on that list is not a question of connections, but of being known.

How you get there: send the purchasing department or the technical department of the public bodies in your area a short presentation of your company, with your activities, your recognitions and your references. Ask explicitly to be added to their list of suppliers for negotiated procedures. A purchasing department that has to collect three bids is glad of a fourth name. Many public bodies even have a form for this on their website. Do this with your own municipality, the neighbouring municipalities, the school groups, the public social welfare centres and the housing companies in your area. It costs an afternoon, and it is the best return on time this book can recommend.

How often to look

With good search profiles the work comes to you, but the work does not disappear. Even with the right CPV codes, most notices are of no use: the place of performance is too far away, the contract is too big, it is reserved for the social economy, or the mandatory site visit has already taken place. You only see that when you open the notice.

What is left calls each time for the check described in the next chapter: opening the specifications and working out whether you may, can and want to take part. In a busy period that adds up to several hours a week. Reading the notices takes little time; the selection does not.

And it has to be done every week. Submission deadlines are set by law and are usually a few weeks, sometimes longer. A contract you spot on day one leaves you time to plan a site visit and build a bid. A contract you spot on day twenty is often already lost. That also applies in the weeks when your own work

is at its busiest.

In practice, this is the work that gets left undone in most SMEs. Not because it is difficult, but because it is never more urgent than tomorrow's site or customer. Anyone starting out with public contracts therefore has to decide who does this: the owner, an employee with dedicated time for it, or someone outside the company who follows the market for you and only passes on what fits.

> **In short**
>
> Register for free on e-Procurement via publicprocurement.be and build search profiles on CPV codes and region, not on keywords.
>
> Contracts below EUR 140,000 are not published: the contracting authority writes to companies itself, so make sure you are on those lists.
>
> Following the market is weekly work: it is not the notices themselves that take time, but the selection. Decide in advance who does it.

PART 2

In practice

CHAPTER 5

Reading the specifications in fifteen minutes

The specifications are the document in which the contracting authority describes what it wants, under what conditions, and how it will choose. They quickly run to dozens of pages, plus annexes. You are not going to read all that from front to back before you know whether it is worth the effort. This chapter gives you the order in which to look, so that you can decide in a quarter of an hour: go on or not.

You will only manage that quarter of an hour with practice, though. The first time you open a set of specifications you are more likely to spend an hour, because the structure and the terms are still unfamiliar. After a few, you know where everything is.

One rule up front. The notice on the platform and the specifications sometimes say different things, for example about the submission date. In that case the notice prevails. Always write down both.

Minutes 1 to 3: the hard stop

Start with the questions where a no ends the conversation.

When must the bid be in, day and hour? Subtract the time you need for a site visit, price requests to suppliers and the writing itself. If less than a week is left, it is too short for a first bid.

Is there a mandatory site visit, and when? In cleaning and technical maintenance that is common. If the date has already passed, the contract is closed to you, however good your price would have been.

Is the contract reserved? Some contracts are reserved for sheltered work companies (maatwerkbedrijven) or the social economy. That is stated at the front of the specifications. If so, it stops here.

Which recognition is required? For works there will be a category and a class. If you do not have them, you cannot bid, unless you rely on the recognition of a subcontractor or partner, and strict rules apply to that.

Minutes 4 to 6: what exactly is being asked

Read the description of the contract and the lots. Check whether the contract matches what you do every day, or something close to it. A cleaning company that does offices can handle a school. A hospital is a different trade. A grounds maintenance company that looks after gardens can mow verges if it has the equipment. A roofer who does pitched roofs should think twice about a flat roof of 3,000 square metres.

Look at the lots. May you bid for a single lot? Must you bid for all lots? May one company win several lots? That determines whether the contract is cut to your size.

Look at the duration. A one-off works contract has an execution period in working days or calendar days. A service contract has a term, often one year with tacit renewals, or four years for a framework agreement. Work out what that means for your planning and your staff.

Minutes 7 to 9: how the choice is made

Find the award criteria. These are the yardsticks against which bids are compared, with their weighting. Price 100 percent is a different contract from price 60 and quality 40. In the first case the spreadsheet wins. In the second, the winner is whoever calculates best and also explains best.

For quality criteria, read exactly what is being asked: a plan of approach, a description of the working method, a schedule, CVs of the team, a proposal for reporting, environmental or safety measures. That is what you will have to write. Estimate whether you can do it, and how much time it will take. Chapter 7 goes into this in more depth.

Minutes 10 to 12: may you take part

Find the selection criteria. These are the minimum requirements for your company, separate from your bid: turnover, references, staff, certificates, insurance. Chapter 6 deals with them one by one. For now the question is enough: is there a requirement you clearly do not meet? If so, stop. If not, carry on.

Minutes 13 to 15: the money

Find the estimate, if one is given. It is not always in the specifications, but it is often in the notice. Compare it with your gut feeling about the work. An estimate far below what you would charge is a warning: either you do not understand the contract, or it has been budgeted too tightly.

Look at the performance bond (borgtocht). This is a guarantee you must provide after the award as security for proper performance. The rule is 5 percent of the contract amount, but since November 2023 a contracting authority may no longer require a performance bond for contracts below EUR 50,000, and above that it may freely reduce it or waive it. A 5 percent bond on EUR 400,000 is EUR 20,000 tied up with a bank or guarantee fund until acceptance of the works (oplevering). Your cash position has to be able to carry that.

Look at the payment arrangements: monthly, per progress statement (vorderingsstaat), after acceptance? And at the price review clause: in cleaning or grounds maintenance, a multi-year contract without wage indexation becomes a loss-maker after the first year.

The decision

After a quarter of an hour you have one of three answers. No, because a hard stop or a selection criterion rules you out. No, because the contract does not fit what you do or what you can handle. Or yes, and then you already know what the bid will demand of you: how much calculation, how much writing, how many certificates.

Only then do you read the specifications in full. And you really read them, from the first page to the last, including the technical provisions and the annexes. Everything in them is binding. What you have not read still counts.

In short

First look at what can rule you out: deadline, mandatory site visit, reserved contract, recognition.

Then read the subject, the lots, the duration, the award criteria and the selection criteria, in that order.

Finish with the money: estimate, performance bond, payment and price review. Only after a yes do you read the whole set of specifications.

CHAPTER 6

The selection criteria that rule you out before anyone reads your bid

A public contract is assessed in two steps. First the contracting authority looks at your company: may you take part? Only then does it look at your bid: how good is it? The first step is called selection. If you do not get through it, you are not assessed. Your price may be the best in the country, but nobody will see it.

Selection has two parts: the exclusion grounds and the selection criteria. Below are the requirements you will come across in almost every set of specifications, each with an assessment of how heavily it weighs in practice for a company with five to fifty employees.

Exclusion grounds: the things you must not have

The law lists situations in which a contracting authority must or may exclude you. The mandatory grounds are criminal convictions for matters such as fraud, corruption or money laundering, and debts to the social security office or the tax authorities above a small threshold. The discretionary grounds concern bankruptcy, serious professional misconduct, false declarations and poor performance of a previous public contract.

With the ESPD, the European Single Procurement Document, you declare that none of these grounds applies to you. Below the European thresholds an implicit sworn declaration is often enough: by submitting a bid, you declare that you are in order. The contracting authority checks social security debts, tax debts and bankruptcy itself through Telemarc. It usually only asks the winner for an extract from the criminal record.

How heavily this weighs: lightly, provided your social security and tax debts are in order. A repayment plan that is being honoured counts as in order. An overdue social security return on the day of submission is the most common, and most avoidable, problem.

Financial standing: turnover

The contracting authority may require a minimum annual turnover, usually over the last three financial years. The law caps that requirement: at most twice the estimated value of the contract, unless the contracting authority gives reasons for asking more. Sometimes it is total turnover, sometimes turnover in the activity covered by the contract.

How heavily this weighs: selectively. A contract worth EUR 400,000 a year can come with a turnover requirement of EUR 800,000 a year. For a company with twenty employees that is achievable, for a company with six it is not. That is also the intention: the contracting authority does not want one contract to be your whole business. With lots, the requirement is set per lot, which lowers the threshold. If you just fall short, you can rely on the capacity of another company, but that company then has to commit itself too.

Technical ability: references

This is the requirement that rules out SMEs most often. The contracting authority asks for a list of comparable contracts from the last three years for services and supplies, or five years for works, with amount, date and client. Often there is a minimum: for example three references, each worth at least a certain amount, in the same sector.

How heavily this weighs: selectively to heavily. Two misunderstandings make it heavier than it needs to be. First, many owners think only public contracts count. That is wrong: a reference from a private customer counts just as well, as long as the work is comparable and the customer is willing to confirm it. Second, people often forget that a reference requires a certificate of satisfactory performance, signed by the customer. Start collecting those certificates from your best customers today. By the time you need them, there is no time left.

In June 2026 Flemish minister Crevits announced a circular calling on Flemish public bodies to drop excessive turnover requirements and not to make reference periods unnecessarily long. The direction is more SME-friendly, but the requirements are not going away.

Recognition as a contractor

For works contracts above EUR 50,000 (for a subcategory) or EUR 75,000 (for a category), recognition is mandatory. The category says which type of work: D for general building works, D8 for roofing, D5 for joinery, and so on. The class says up to what amount you may carry out contracts, from class 1 for the smallest to class 8 for the largest. The amounts per class are adjusted from time to time; check them on the website of the Federal Public Service Economy (FOD Economie / SPF Économie).

How heavily this weighs: hard. Without the right category and class you cannot bid, full stop. Applying for recognition takes months and requires a file on your staff, your equipment, your finances and your references. Anyone in construction who wants to start with public contracts starts here, long before the first set of specifications.

Certificates

Depending on the sector, the specifications ask for certificates or registrations: VCA for safety on sites, ISO 9001 for quality, ISO 14001 for the environment, registration as a refrigeration company for anyone working with refrigerants, an approval for pest control, a certificate of inspection for aerial work platforms and ladders.

How heavily this weighs: it varies. VCA is common and achievable for a small company. ISO certificates are an investment of months and thousands of euros; they are rarely a hard requirement for smaller contracts, but often a plus point in the quality assessment. Watch the wording: ‘or equivalent’ means you may show with your own quality system that you achieve the same result.

Insurance

The specifications usually ask for public liability insurance with a minimum cover per claim, and for works sometimes a contractors' all risks policy (ABR-polis) or ten-year liability cover. A certificate from your broker is enough.

How heavily this weighs: lightly. Every company that works seriously has this insurance. Do check whether the cover required is higher than your current policy; your broker can arrange an increase in a few days.

Staff and equipment

The contracting authority may ask about your average headcount over the last three years, the qualifications of your managers and the equipment you use. In cleaning there is often a special requirement on top: taking over the staff of the previous contractor, as laid down in the sector's collective labour agreement. A company that takes over a running cleaning contract will in many cases also take over the people who work on it.

How heavily this weighs: lightly to selectively. You simply supply the figures. Taking over staff is not an exclusion, but it is something you must factor into your price and your planning before you submit.

Social and environmental clauses

More and more specifications contain a social clause, for example an obligation to employ a jobseeker or an apprentice during the contract, or environmental requirements such as the use of electric equipment or a waste plan. These are usually conditions of performance, not selection criteria: they do not exclude you, but you commit to them.

How heavily this weighs: lightly, provided you have read them. A social clause you only discover after the award costs money and time that were not in your price.

What you can do today

Most of the selection can be prepared, independently of any particular contract. Make sure your social security and VAT are in order. Collect certificates of satisfactory performance from your best customers. Apply for your recognition, or check whether your class still matches your turnover. Ask your broker for an insurance certificate. Put your turnover figures for the last three years and your headcount on a single sheet. If you have that in order, you will pass the selection for most contracts of your size without doing anything extra.

In short

Selection takes place before assessment: if you fail a requirement, your bid is not read, however good it is.

The three requirements that most often rule out SMEs are references with certificates, the turnover requirement and, for works, recognition.

Almost everything can be prepared in advance: collecting certificates, sorting out recognition, having the figures ready.

CHAPTER 7

Price versus quality: where the points are

Once you are through the selection, your bid is assessed against the award criteria. The specifications say what they are and how much they weigh. This chapter is about how that assessment works in practice, and where a well-prepared company makes the difference.

Three kinds of contract

Price only. In many works contracts, such as the sports hall in Bilzen, only price counts. The lowest compliant bid wins. Compliant means: complete, signed, in line with the specifications and without abnormal prices. Here the bid is a spreadsheet, and whoever calculates most sharply and most accurately wins.

Price with quality. In most service contracts price weighs between 50 and 80 percent and quality makes up the rest. Verviers: price 80, quality 20. Lokeren: price 65, plan of approach 35. Here you need a sharp price to be in the game, but the quality points decide between the sharp prices.

Quality with price. In some contracts quality weighs as much as price or more, for example 50 or 60 percent. We see that in cleaning for care institutions, in maintenance contracts with high availability requirements, and with municipalities that have learned their lesson after a bad experience with the cheapest. Here the company that best explains how it works wins, even if it is not the cheapest.

How price is assessed

The points for price are calculated with a formula set out in the specifications. The most common one gives the lowest price the maximum and the other bids a proportional share: a bid 10 percent more expensive than the lowest gets 10 percent fewer points. Other formulas penalise more or less heavily. Read the formula, because it determines how much one extra euro costs you in points, and therefore how much room you have to win on quality.

A worked example without made-up figures: if price weighs 60 points with a proportional formula, and you are 5 percent more expensive than the cheapest, you lose 3 points on price. If quality weighs 40 points and you score 8 points better there than the cheapest, you win. That is the whole logic of price versus quality in two sentences.

In multi-year contracts, pay attention to the price review clause. That formula in the specifications determines how your price rises with wages and costs. Your price today is your price for the coming years, adjusted by that formula. If it does not follow wage increases in your sector, you have to build that margin in up front.

How quality is assessed

Quality is assessed on documents you attach to your bid. The specifications say which ones, and often how long they may be. The usual ones are:

The plan of approach or working method. How will you actually carry out the contract: which team, what frequency, what sequence, what equipment, how will you start up, how will you guarantee continuity during sickness or leave. This is the document where most points can be earned, and the document most companies write too generally.

The schedule. For works: a realistic site schedule with phases and milestones. For services: an annual schedule with the fixed moments and the seasonal peaks. A grounds maintenance company that shows it knows when the grass grows scores better than one that writes it will come ‘on call’.

Reporting and communication. How does the contracting authority know the work has been done? Who is the contact person? How quickly do you respond to a complaint or a breakdown? In Verviers, 10 of the 100 points were at stake here. A company that describes a simple, concrete system gets them.

The team. CVs of the project manager and the supervisors, their experience with comparable contracts, the training of the operational staff.

Environment and safety. Which equipment, which products, how you deal with waste, how you organise safety on the site or in the building.

Where a good answer stands out

The assessors read four, six, eight bids one after another. Most of what they read consists of general statements: ‘we attach great importance to quality’, ‘our staff are trained’, ‘we respond quickly’. Those statements are true and they are worthless, because every competitor writes them too.

What does score is concrete and tailored to this contract. Not ‘we respond quickly’ but within what time, via which number, and who then turns up. Not ‘our staff are trained’ but which training, how many hours, and how you keep track of it. Not ‘we know the sector’ but what you saw during the site visit and how you deal with it: the narrow stairwell without a lift, the car park that is only empty at night, the boiler behind the canteen.

Follow the structure of the specifications as you do so. If the contracting authority lists four sub-criteria, write four chapters with the same titles in the same order. The assessor looks for your answer criterion by criterion. If they find it straight away, you get the points. If they have to search, you do not get the benefit of the doubt.

Keep it short. A six-page plan of approach that answers exactly what was asked beats thirty pages of company presentation. Where the specifications set a maximum length, that is not a suggestion.

The abnormal price

One pitfall deserves a paragraph of its own. A contracting authority is required to investigate a price that appears abnormally low, and may also do so for a unit price that is too low or too high. You then receive a letter asking you to justify your price, and you have a short period to do so. A bidder who cannot explain the price in terms of labour cost, equipment cost and margin is excluded.

That means two things. First: build up your price so that you can justify it, with a cost calculation you can show. Second: do not be afraid of a competitor whose price is impossibly low. If that price does not add up, the contracting authority will establish that itself.

> **In short**
>
> Read the price formula in the specifications: it determines how many points one extra euro costs you, and therefore how much room you have to win on quality.
>
> Quality points go to concrete, tailored answers that follow the structure of the specifications, not to general statements about your company.
>
> A price must be justifiable: an abnormally low bid is investigated and can be excluded.

CHAPTER 8

The mistakes that make good bids lose

Most bids do not lose because the company is bad. They lose because something is missing, something is wrong or something is late. These are the mistakes I see most often, from the most fatal to the most insidious.

Too late

The submission date and time on the platform are absolute. A bid that arrives at 10:01 for a 10:00 deadline does not exist. The platform closes. There is no appeal, no explanation, no exception. Uploading your bid on the last day is playing with fire: a slow connection, a file that is too large, a signature that does not work. Submit at least a day in advance. Until the deadline you can always upload a new version.

Not signed, or signed incorrectly

A bid on e-Procurement must be signed electronically by someone authorised to bind the company, with a qualified signature, which in practice means the electronic identity card or an equivalent certificate. A signature by an employee without power of attorney, a scanned signature, or no signature at all: until now that made your bid substantially irregular (substantieel onregelmatig), and therefore invalid. The bill introduced in the Chamber in October 2026 aims to relax that: a missing or invalid signature could then be corrected within five to fifteen calendar days. Until that is in force, the strict rule applies. Check beforehand who is allowed to sign for you under your articles of association, and test the signature on the platform before the day of submission.

Incomplete

The specifications contain a list of what must be included with the bid: the bid form, the bill of quantities or price schedule (inventaris), the ESPD, the certificates, the documents for the quality assessment, sometimes a drawing or a technical data sheet. Every missing item can make your bid non-compliant. Some defects the contracting authority may let you correct, others not, and you do not know in advance which. Make a checklist from the specifications and tick it off. Have someone other than the writer do the check.

Not following the specifications

A bid on your own form instead of the bid form in the specifications. Your own bill of quantities instead of the contracting authority's. Your own general terms and conditions added at the back. A variant submitted where the specifications do not allow variants. Each of these can make a bid irregular. In a public contract, the contracting authority's conditions are the only conditions. Your general terms and conditions do not count, not even if you send them along. If you do send them, it can even work against you, because you are then departing from the specifications.

Calculation errors in the bill of quantities

A wrong unit price, a quantity that was not carried over, a total that does not add up, VAT included where the price should have been exclusive. The contracting authority may correct calculation errors, but not always in your favour, and an inconsistent bill of quantities can also trigger a price investigation. Check everything twice, with two different people. And read the bill of quantities itself: if an item is unclear or a quantity looks unlikely, ask the question through the forum on the platform. You may do so up to a set date before submission, and the answer goes to all bidders.

Skipping the site visit

If the specifications make a site visit mandatory, you must have attended and must attach the certificate. But even if it is not mandatory, go. Anyone who has seen the building prices more accurately, writes a more concrete plan of approach and avoids surprises after the award. On a four-year contract, half a day on site is the best investment in the whole bid.

Treating quality as an afterthought

The price is calculated on the last day and the plan of approach is dashed off that same evening. The result is a general text that does not really answer a single criterion. In a contract where quality weighs 30 or 40 percent, that is a lost bid. Start on the quality documents on the day you decide to take part, not on the last day.

Too cheap to win

The reverse of the previous mistake. A price so low that the contracting authority has to investigate it, and that you cannot justify. Or a price that is credible, but with which you run at a loss for four years because you did not account for the price review, the takeover of staff or the travel. Winning is not the goal. Winning at a profit is the goal.

Learning nothing from a loss

After the award, every bidder receives a reasoned decision with the scores. Most companies read that they have lost and throw the letter away. Read it. If necessary, request the award report (gunningsverslag); you are entitled to it. It shows you exactly where you dropped points, and what the winner did better. That is the cheapest training there is, and it is free.

In short

The fatal mistakes are formal ones: too late, not signed correctly, incomplete, not on the documents in the specifications.

The insidious mistakes are about content: calculation errors in the bill of quantities, a generic plan of approach, a price that cannot be justified.

Every lost bid comes with a reasoned decision and an award report. Those who read them win more often next time.

CLOSING

What it realistically takes, and an invitation

You have now seen what there is to win, where it is and where it goes wrong. That leaves the question every owner asks: how much of my time will this take, and when will it pay off?

The time

A first bid takes the most. Count on a few days spread over two to three weeks: reading the specifications, the site visit, drawing up the price, writing the quality documents, collecting the certificates, the check and the submission. The second bid goes faster, because half the documents already exist. From the third or fourth, it becomes a fixed routine, just as quoting for a private customer once did.

On top of that there is the work that never stops: following and sifting the notices every week, as described in chapter 4, and updating your references, certificates and figures every year. That monitoring is not a bid but a standing task, and it is the task that is dropped first when things get busy. You can do it yourself, give it to an employee, or have it done by someone who filters the market for you and only puts forward what fits your company. What matters most is that someone does it, every week.

The expectation

Nobody wins their first bid. That is not pessimism, it is the experience of almost every company that starts with public contracts. The first bid teaches you how the platform works, where your price sits against the market and what the contracting authority is looking for in the quality documents. The reasoned decision you receive afterwards tells you exactly where you stood. If you keep reading those decisions and adjusting, after a year you will have a reasonable chance of success. What percentage that is depends on your sector, your region and your price, and I am not going to put a figure on it.

What I can say is this: the companies in chapter 2 won a EUR 739,000 sports hall, a EUR 435,000 cleaning contract, a four-year grounds maintenance contract and a four-year maintenance contract against two to eight competitors. Those are not exceptions. That is what is awarded every week, to companies with 25 to 45 employees, all over Belgium.

After the award

One more thing, because it is the question owners rarely ask out loud. What if I win? Then the contracting authority concludes the contract, you provide the performance bond within thirty days if one is required, and you start on the agreed date. Performance follows the general rules of execution (AUR/RGE), a fixed legal framework that sets out how you invoice, how the contracting authority inspects and pays, and what happens in the event of delay or dispute. That framework is stricter than with a private customer, but it is

also predictable. If you keep to your agreements and keep your reporting up to date, it rarely causes you trouble. And a company that carries out a first public contract well immediately has the reference that makes the second bid easier.

An invitation

If after reading this book you think there is something to be gained in your sector and your region, send a short email to **steven@mecheleconsultancy.be** with the name of your company and your sector. One sentence is enough.

By email, you will receive an explanation of how I work: every working day I screen all new publications, every week you receive the contracts that suit your company, each with a short summary sheet and my advice on whether or not to bid, and every month a full report of everything that was screened. For each contract you choose for yourself: submit it yourself, or hand the support over to me.

If it does not suit your company, I will tell you so.

Steven Mechele
Mechele Consultancy

> ### In short
>
> A first bid takes a few days over two to three weeks; from the third one, it becomes routine.
>
> The first bid rarely wins, but it gives you the information that makes the next one better.
>
> Want to know whether public contracts are worth it for your company? A short email to steven@mecheleconsultancy.be is enough.

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